

STATE OF NEW YORK

5226--B

2025-2026 Regular Sessions

IN SENATE

February 19, 2025

Introduced by Sens. JACKSON, CLEARE, FERNANDEZ, SEPULVEDA -- read twice and ordered printed, and when printed to be committed to the Committee on Consumer Protection -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- recommitted to the Committee on Consumer Protection in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to setting standards for advertising deeply affordable housing

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The general business law is amended by adding a new section
2 350-a-1 to read as follows:

3 § 350-a-1. Standards for advertising deeply affordable housing. 1. A
4 housing unit may only be advertised as "deeply affordable" if it is
5 affordable to a very low income family, as defined by 24 CFR 5.603.

6 2. (a) Describing a housing unit that does not meet the applicable
7 criteria of subdivision one of this section as deeply affordable in any
8 physical or digital promotional material created by a person or entity
9 with a financial interest in such housing unit shall be considered false
10 advertising for the purposes of section three hundred fifty of this
11 article.

12 (b) In cases where a person or entity is advertising housing units in
13 a building or housing development that are market rate along with units
14 which meet the definition of deeply affordable, such advertisement shall
15 clearly state either (i) the percentage of units in such building or
16 housing development that meet the definition of deeply affordable or
17 (ii) the number of units that meet the definition of deeply affordable
18 and the number of units that are market-rate.

19 3. When a municipal government or the state provide information to the
20 public about available deeply affordable housing units, they shall

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD05091-04-6

1 adhere to the definition and advertising rules established pursuant to
2 this section. This includes public-facing communications, databases,
3 and promotional materials regarding available housing units.

4 4. The provisions of this section shall not be construed to impact
5 eligibility for tax credits, grants, or other incentives for affordabil-
6 ity programs with definitions that differ from those in this section;
7 provided, however, that advertisement of any housing unit under such a
8 tax credit, grant or other incentive program shall be governed by the
9 provisions of this section.

10 § 2. This act shall take effect on the one hundred eightieth day after
11 it shall have become a law.